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No. 34

Sulwood

United States Consulate
Amoy June 15th 1874

UNITED STATES CONSULATE AMOY
JUN 15 1874

DEPARTMENT OF STATE
RECEIVED
AUG 5 1874

Mr J. J. Henderson Consul.

To the Dept of State.

Subject
Japanese in Formosa.

Contents.
Reference to Contents of
Dispatch of Board of Trade
Foochow

No. 34.

United States Consulate
Amoy. June 15th. 1874.

Hon. J.C.B. Davis
Ass't. Secretary of State
Washington D.C.

Sir.

I have the honor to enclose Copy and translation of a dispatch which I received on the 8th inst. from the Board of Trade at Foochow on the subject of the Japanese expedition to Formosa.

Although it Amounts to Nothing in particular taken altogether it is a Curious document on international Complications.

One or two passages on the 4th. page of the translation appear to Strengthen an opinion I have hitherto entertained to the effect that the Chinese do not want these Formosa Savages punished or brought into Subjection at all. And I firmly believe they would be glad to have tribes of Savages all through China who would murder & prevent foreigners from exploring the Country.

I am Sir, your obedient Servant

J. Heyderson
U.S. Consul.

Enclosures.

1. Copy of Dispatch from Board of Trade Foochow.
2. Translation of Same.

大清欽命三品銜督辦通商事務署福建監法道陸　為

照會事同治十三四月十八日奉

閩浙總督部堂李　牌開本日照會

日本國陸軍中將西鄉公文一件內開前准照會得悉

陸中將撤兵回國以符條約具又照覆在案茲于四

月十二日接據台湾鎮道稟稱　陸中將統率部兵已

在我鳳山縣所屬琅嶠紫城一帶地方紮營與屬地

生番爭鬥經委安平協副將周振邦署台防同知

傅以禮等馳赴該處于初八日與　陸中將相見面

詢本部堂照會曾否達覽　陸中將答已經收到並

語該文武官以此次用兵生番因去年

日本國副島大臣早與

總理衙門商明近又有

欽差赴北京專論此事候北京信到再行照覆不肯即

日回兵等因又據稟稱四月初七日有

日本國駐廈領事官福島九成書記吳碩往見該鎮道面

言要赴琅嶠查看不准本國兵船與中國民人滋事

以敦和好特來拜謁該鎮道詢以何故動兵答稱欲將

生番稍示懲儆不敢扰害中國地方等語先後到本

部堂准此詳閱各情深佩

本

日國政府敦言修睦益固邦交之意而　陸中將謹承

以敦和好特來拜謁該鎮道詢以何故動兵答稱欲將
生番剿示懲儆不敢扰害中國地方等語先後到本
部堂准此詳閱各情深佩
日本國政府敦信修睦益固邦交之意而 陸中將謹承
上命情意殷拳務祝精緻以敦永好聞之亦甚欣愜因思
日本國與中國立約未入方期兩國和好可與天壤無窮
乃此舉並未商由
總理衙門移知本部堂作何辦理徑命 陸中將統
師赴中國所屬邦土本部堂所管地方用兵蓋由輕
聽浮言誤會生番非中國所管之謠傳遂致
日本國政府與 陸中將近日所為事事與萬國公
法暨修好條約違背宜中外輿論皆不以為然也除
詳載本部堂前次照會外合就將本部堂確查証据及
日本國此舉不合萬國公法暨修好條約之處為
陸中將更詳告之查琅嶠番社人物地方確歸中國
轄屬証据歷歷分明可核者三南路琅嶠十八社向歸
鳳山縣管轄每年徵完番餉二十兩有奇載在台湾
府誌此証据一也台湾設立南北路理番同知專管
番務每年由各該同知入內山犒賞生番鹽布等物此
証据二也柴城又名福安街建有我
朝公中堂福公康安碑廟此証据三也証据確鑿歷歷來

此文特以禮記不易其俗不易其宜故向來中國不爭

府誌此証據一也台灣設立南北路理番同知專管
番務每年由各該同知入內山犒賞生番鹽布等物此
証據二也柴城又名福安街建有我
朝公中堂福公康安碑廟此証據三也証據確鑿歷來
已久持以禮記不易其俗不易其宜故向來中國不全
絕以法律而已查兩國修好條規第三條云兩國政
事禁令各有異同其政事應聽己國自主彼此均不
得代謀干預查台灣生番久屬中國其不全絕以
法律者即政事禁令各有異同之一端也按約應聽中
國自主
日本國不得代謀干預況兩國所屬邦土不可稍
有侵越第一條顯有明文尤宜共相篤守又第十四
條載日本人在中國指定口岸及附近洋面不准與
不和
之國互相爭鬥夫附近中國洋面與不和之國尚
不准爭鬥況為我疆土之內隸屬之人今
陸中將在琅嶠柴城一帶於我設立隘寮之疆土
徑行登岸紮營於我納稅食粮之番民竟行擾
伏爭鬥與條約各款種種不合設令他國效
日本國之所為於
日本國之所為於
日本國屬地屬民並不先行商准遽爾分將興兵據
其地誅其人
日本國其能任聽容之所為而不問乎 陸中將又已以
思必有浪然自失者據台灣鎮之通言耳

日本國屬地屬民並不先行商准遽爾今將與兵據
其地誅其人
日本國其能任聽容之所為而不問乎　陸中將又已以
思必有退然自失者指台灣戰役言
陸中軍及理事官福島九成俱言上年使臣到京曾
對總理衙門說過以生番非中國所管及此舉早經
商明故爾前來查中國自來與各國立約俱
敘旨訂立條約並持條聲明兩國全權大臣先行畫押蓋
印俟兩國
御筆批准後刊刻通行今
陸中將及理事官所云上年使臣向
總理衙門說過等語是否遵照中國律法立約抑將
商明之事或蓋閱防於公函或兩國互行告示或互
換照會以為憑據本部堂並未接准
總理衙門移知
陸中將奉
命遠來定憑詳細如當時立有憑約請將彼此原議文
約抄示本部堂自當聽　陸中將照約辦理如當時未
立有憑應請　陸中將撤兵回國不得於中國所屬
邦土地方久駐兵旅以符條約窃思
日本國政府祇因生番戕害唯民兩案故命將統兵深
入番地剿其首凶使無再蹈前轍查我屬中山國被

邦土地方久駐兵旅以符條約窃思

日本國政府祇因生番戕害唯民兩案故命將統兵深

入番地剿其首凶使無再蹈前轍查我屬中山國被

戕遭風難民一案仍應由本部堂自行嚴檄該地方

官辦理毋庸

日本國干預外其

日本國倘中卅難民利八等四名但只被搶並未殺

害應由本部堂按照修好條規内第八条盜竊等案

由地方官查拏追辦之約嚴飭地方官追办本部堂

斷不以中外之分稍存歧視該地方官處分攸関亦

斷不敢玩延不必　陸中將駐兵台湾曠日持久勞

師糜餉本部堂係為兩國各敦和好起見故再為

詳示証據申明条約剴切照會現在上而各國駐京

公使下而中外輿論均以日本國此舉為非想

陸中將忠於謀國定能翻然變計即日撤兵回國以

免天下公非保兩国永好　陸中將寔圖利之等因

奉此除照會

上海日本品川領事查照轉呈外合併照會

貴領事煩為查照是荷須至照會者

右　照　會

大合衆國欽命駐劄厦門管理通商事務領事官恒

大清同治十三年四月　廿一　日照會

No. 2

照

會

No 2.

On the 4th Month & 18th day of present year (June 2nd) I received a Communication from the Govenor General, saying that he had on that day sent a Communication to the Jap: Commander-in-Chief Siang, in which he stated that he had received the Communication of the Japanese Commander-in-Chief to the effect that he had come to Formosa with Soldiers to punish the Savages by Imperial order - and that thereupon he had, in accordance with international law, requested him to act according to treaty Stipulations & take his Soldiers back again - all which is on file.

On 4th Month 12th day (May 27) I received a Statement from the General & Taotai of Formosa saying that the Jap: Commander had brought his Soldiers to Liang Kiau Chasing in the Fung Saw Hien, pitched a Camp and began hostilities with the Savages on Chinese Territory, & that thereupon two officers were detailed to proceed to the Spot, viz Chin Chin Saw Colonel of Amping, and Fu-E-Lee - Sub-Prefect of Formosa. On the 4th Month 1st day (May 23rd) they saw the Jap: Commander-in-Chief & asked him whether he had received the Gov: General's Communication, to which he replied in the affirmative, thereupon stated to these two officers that he had come with

soldiers to punish the Savages, because last year the Jap: Minister Yu Tow had fully Consented with the Foreign Office, and further that a Jap: Embassy was proceeding to Peking on purpose to discuss this affair; and that he was awaiting advices from Peking before replying to the Governor General and that he would not take the troops back to Japan.

The General & Taotai again made a Statement that on the 4th Month 4th day (22nd May) the Jap: Consul for Amoy Yu Jan Kin Chin with his Clerk U. Sit called on them saying that they were going to Liang Kiau to prevent troubles between the Japanese Soldiers and the Chinese that the two Countries may Continue in friendship and that they had Come to pay their respects. The General & Taotai then asked them why they had brought troops over, to which they Answered that they wished to inflict a Slight Punishment on the Savages but would do no harm to Chinese territory.

The above petitions have been received by me, on Considering which, I am profoundly grateful to the Japanese Government for these friendly assurances, insuring peaceful Relations between the two Countries - Also that the Jap: Commander under the instructions of his Superiors is doing things so as to inspire Confidence so that the words of these two men are heard with pleasure, and I hope that the treaty so recently Consummated between the two Countries may endure as long as heaven -

About this expedition no information was given either to the Foreign Office or to myself that we might know how to act in this matter.

But the Jap: Government Sent their Commander with troops for warlike purposes to Chinese territory under my jurisdiction. By acting according to reports that the Savages were not under Chinese Control they fall into this Mistake and so gave their orders to their Commander-in-Chief.

All these acts violate international law as well as treaty stipulations, & are Condemned alike by Chinese & other Nations. I have already sent a Carefully drawn up Communication to the Japanese Commander-in-Chief, but must address another, Stateing the proofs which I have obtained as well as the manner in which international law and treaty Stipulations have been violated. The Savages, their Villages & property at Liang Kiau, are without doubt under Chinese Control, for which there are three items of proof. First Proof. The 18 Villages of Liang Kiau to the South, formerly belonged to the Kung San Hien, and the yearly tax was over 20 Taels, as recorded in the Formosa Annals. Second Proof: Formosa has a Sub-Prefect for the N.E. districts, whose business it is to look after Savage affairs, who each Year enters Savage territory with Salt, Cloth & other Articles to reward good Conduct

on their part.

Shid Prof. In Chasiang, otherwise Fu-An Street, there is the tablet temple of one of our distinguished Ministers Fuh-kong-An. And these proofs have existed a great while. The Book of Rites says "do not Change Customs, do not change what men think to be right", therefore China has not been in the habit of holding these Savages to strict accountability.

In the 3rd Art. of the Treaty between the two Countries it is said that because the institutions of the two Countries are different, therefore each Country must regulate its own affairs as it sees best, without interference from the other.

Now China although Controlling Savage territory, has not held the Savages to strict accountability. This is in accordance with what is said as to the institutions being different, so that according to treaty China can do as she pleases in the matter, without interference from Japan.

The territory Controlled by each is not to be Violated by the other, according to Art 1st of the Treaty, which being understood is to be observed.

The 14th Art. says that Japanese Subjects must not Carry on hostilities with an unfriendly nation in the Ports or waters of China.

Now if it is so that may not war with an unfriendly nation in China waters how is it that this Jap: Commander has

come to Leang Kiau Chasiang, where I have gates & watch tower, landed and formed a Camp & gone to war with people who pay taxes to me. This is totally against the stipulation of the Treaty. Suppose another nation follows this example on Jap: Soil and towards Japanese people, without previous hostilities but officers & troops suddenly occupying the land and killing people, would Japan bear this with indifference & without remonstrance. If the Commander should seriously Consider this, would he not regret his Course.

The Formosa General & Soutai have stated that the Jap: Commander & Consul have said that last Year their Minister went to Peking & Communicated with the Foreign Office, so that these Savages are not under the Control of China, in Consequence of which the expedition had come.

Now on all occasions when China made treaties with other Nations; their embassadors or Ministers must follow instructions from home, & when the treaty is arranged affix their Signatures Seals and await Confirmation from home before the treaty is Officially published.

Now when the Jap: Commander & Consul stated that last Year their Minister Consulted with the Foreign Office &c. &c. was it or was it not according to Chinese Usage, Viz; an Agreement Made Signed with full explanations, or Seal affixed, or did both governments issue proclomations or exchange dispatches for

proof

Of such I have received no information from the Foreign Office. When this Commander came so far by Imperial order he doubtless knew whether there was any written agreement or proof. Let him produce a Copy Show me and I will let him act according to such Agreement.

And since at that time there was no such agreement I ask the Commander to act according to treaty take his troops back not stay with them on China soil. I consider that the Japanese Government because the savages killed shipwrecked Japanese therefore ordered the Commander to proceed with soldiers punish the head men, to deter from such doings in future.

In the Case of shipwrecked people from the Lieu Chieu Islands which are under my jurisdiction, I issued strict orders to the local Authority to act in the matter, without need of interference from Japan. Four shipwrecked men from a Jap: Ship the "Lu Pah" belonging to Ti Ching Chin were robbed, but not killed, with reference to whom I acted according to the 8th Art. of treaty, ordering the local Authority to punish according to law. and have the things restored. I am not willing to make a distinction between Chinese & foreigners, therefore ordered the Official to act promptly under pain of punishment

There is no occasion that the Japanese should stay longer in Formosa, using up labor & money. I wish both Countries to be at peace, therefore I again set forth accurate proof, as well as treaty stipulations, and make a truthful statement. For how both Ministers at Peking, as well as people at large Condemn this as wrong.

If this Commander wishes to act for the true interests of his Country, he will at once change his course & take back his troops, to Avoid universal Condemnation & preserve the Continued Peace of the two Nations.

What I have said is truly for the good of the Commander &c.

Now I Lieh, having received this Communication, forward Copies, one to the Japanese Consul at Shanghai Pinchwan to send to his Superiors, and one to your honorable self hopeing you will investigate and Arrange this Matter.

To Mr. Henderson
U. S. Consul Amoy.

4th Month 21st day. (June 5th)
Received " 8th "